

CHAPTER 20.

An Act to make further provision with respect to the qualifications of Judges of High Courts in British India. [20th July 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 101
(3) (d) of
the Govern-
ment of
India Act.

1. Subsection (3) of section one hundred and one of the Government of India Act (which relates to the qualifications to be possessed by a judge of a high court) shall have effect, and shall, as from the first day of April, nineteen hundred and twenty-one, be deemed to have had effect, as though the following paragraph were substituted for paragraph (d) of that subsection:—

“(d) a person who has been a pleader of one of the high courts referred to in this Act, or of any court which is a high court within the meaning of clause (24) of section three of the Act of the Indian Legislature known as the General Clauses Act, 1897, for an aggregate period of not less than ten years.”

Short title.

2. This Act may be cited as the Indian High Courts Act, 1922.

CHAPTER 21.

An Act for enabling effect to be given to two Treaties signed at Washington on behalf of His Majesty and certain other Powers.

[20th July 1922.]

WHEREAS at Washington on the sixth day of February, nineteen hundred and twenty-two, two treaties were signed on behalf of His Majesty, the one (being a Treaty for the Limitation of Naval Armament) containing among other provisions, the provisions set out in the First Schedule to this Act, and the other (being a treaty to protect neutrals and non-combatants at sea in time of war and to prevent use in war of noxious gases

and chemicals) containing among other provisions the provisions set forth in the Second Schedule to this Act :

And whereas it is expedient to give effect to the provisions so set forth in manner hereafter appearing :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No person shall, without a licence from the Admiralty—

Restriction
on building,
&c., vessels
of war.

(a) within any part of His Majesty's Dominions to which this Act applies, build any vessel of war, or alter, arm or equip any ship so as to adapt her for use as a vessel of war ; or

(b) despatch or deliver, or allow to be despatched or delivered, from any place within any part of His Majesty's Dominions to which this Act applies any ship which has been so built, altered, armed, or equipped as aforesaid either entirely or partly within His Majesty's Dominions :

Provided that a licence for any such purpose shall not be refused by the Admiralty unless it appears to the Admiralty necessary to do so for the purpose of securing the observance of the obligations imposed by the first-mentioned Treaty, and where a licensee is granted subject to conditions, the conditions shall be such only as may appear necessary to the Admiralty for the purpose aforesaid.

(2) An application for a licence under this section shall be accompanied by such designs and particulars as the Admiralty may require.

(3) The Admiralty may, by warrant, empower any person to enter any dockyard, shipyard, or other place, and to make inquiries respecting any ship being built, altered, armed, or equipped therein, with a view to ascertaining whether any ship is being built, altered, armed, or equipped contrary to this Act, and to search any such ship.

(4) If any question arises as to whether a ship is a vessel of war, or whether any alteration, arming, or equipment of a ship is such as to adapt her for use as

a vessel of war, the question shall be referred to and determined by the Admiralty whose decision shall be final.

Legal pro-
ceedings.

2.—(1) If any person contravenes the foregoing provisions of this Act, or contravenes or fails to comply with any condition subject to which a licence under this Act is granted, he shall be guilty of an offence and shall be liable on conviction on indictment to imprisonment with or without hard labour for a term not exceeding two years, or to a fine not exceeding one hundred pounds, or to both such imprisonment and fine, and the ship in respect of which the offence is committed and her equipment shall be liable to forfeiture to His Majesty.

(2) Where the person guilty of such an offence is a company or corporation, every director and manager of the company or corporation shall be guilty of the like offence and liable to the like penalties, unless he proves that the act or omission constituting the offence took place without his knowledge and consent.

(3) Where any such offence has been committed by any person by reason whereof a ship or the equipment thereof has become liable to forfeiture, proceedings may be instituted contemporaneously or not, as may be thought fit, against the offender in any court having jurisdiction of the offence, and against the ship, or ship and equipment, for the forfeiture in a court having jurisdiction in Admiralty; but it shall not be necessary to take proceedings against the offender because proceedings are instituted for the forfeiture, or to take proceedings for the forfeiture because proceedings are taken against the offender.

57 & 58 Vict.
c. 60.

(4) Section seventy-six of the Merchant Shipping Act, 1894 (which relates to the forfeiture of ships), as amended by any subsequent enactment, shall apply to ships which have become subject to forfeiture under this Act in like manner as it applies to ships subject to forfeiture under Part I. of that Act.

(5) If the Admiralty are satisfied that there is reasonable ground for believing that a ship has been or is being built, altered, armed, or equipped contrary to this Act, or about to be despatched or delivered in contravention of this Act, the Admiralty shall have power to issue a warrant ordering any such officer as is mentioned in the said section seventy-six to seize and search the ship, and

to detain the ship, and section six hundred and ninety-two of the Merchant Shipping Act, 1894, relating to the detention of ships under that Act, shall apply to the detention of ships under this Act.

(6) No proceedings shall be instituted in respect of any such offence as aforesaid without the consent of the Admiralty.

3. The foregoing provisions of this Act shall be in addition to and not in derogation of the provisions of the Foreign Enlistment Act, 1870.

Saving of
33 & 34 Vict.
c. 90.

4. Any person in the service of any Power who violates any of the rules contained in Article I. set forth in the Second Schedule to this Act, whether or not such person is under a governmental superior, shall be deemed to have violated the laws of war, and shall be liable to trial and punishment as if for an act of piracy, and if found within His Majesty's Dominions, may be brought to trial before any civil or military tribunal who would have had jurisdiction to deal with the case if the act had been an act of piracy.

Trial and
punishment
for violation
of rules as
to warfare
against
commerce.

5.—(1) This Act shall extend to the whole of His Majesty's Dominions, except India and the self-governing Dominions, that is to say, the Dominion of Canada, the Commonwealth of Australia (including for this purpose Papua and Norfolk Island), the Dominion of New Zealand, the Union of South Africa, and Newfoundland, and, after the constitution of the Irish Free State, the Irish Free State:

Extent of
Act.

Provided that, in the application of this Act to any part of His Majesty's Dominions outside the United Kingdom, for references to "the Admiralty" there shall be substituted references to "the governor of the possession."

(2) His Majesty may, by Order in Council, extend the provisions of this Act to any British protectorate, subject to such modifications as may be contained in the Order.

6.—(1) This Act may be cited as the *Treaties of Washington Act, 1922.*

Short title
and com-
mencement.

(2) This Act shall come into operation on such day as may be fixed by Order of His Majesty in Council.

SCHEDULES.

Preamble.

FIRST SCHEDULE.

ARTICLES OF TREATY FOR THE LIMITATION OF NAVAL ARMAMENT.

ARTICLE V.

No capital ship exceeding 35,000 tons (35,560 metric tons) standard displacement shall be acquired by, or constructed by, for, or within the jurisdiction of, any of the Contracting Powers.

ARTICLE VI.

No capital ship of any of the Contracting Powers shall carry a gun with a calibre in excess of 16 inches (406 millimetres).

ARTICLE IX.

No aircraft carrier exceeding 27,000 tons (27,432 metric tons) standard displacement shall be acquired by, or constructed by, for, or within the jurisdiction of, any of the Contracting Powers.

* . * * *

ARTICLE X.

No aircraft carrier of any of the Contracting Powers shall carry a gun with a calibre in excess of 8 inches (203 millimetres). Without prejudice to the provisions of Article IX., if the armament carried includes guns exceeding 6 inches (152 millimetres) in calibre the total number of guns carried, except anti-aircraft guns and guns not exceeding 5 inches (127 millimetres), shall not exceed ten. If alternatively the armament contains no guns exceeding 6 inches (152 millimetres) in calibre, the number of guns is not limited. In either case the number of anti-aircraft guns and of guns not exceeding 5 inches (127 millimetres) is not limited.

ARTICLE XI.

No vessel of war exceeding 10,000 tons (10,160 metric tons) standard displacement, other than a capital ship or aircraft carrier, shall be acquired by, or constructed by, for, or within the jurisdiction of, any of the Contracting Powers.

Vessels not specifically built as fighting ships nor taken in time of peace under Government control for fighting purposes, which are employed on fleet duties or as troop transports or in some other way for the purpose of assisting in the prosecution of hostilities otherwise than as fighting ships, shall not be within the limitations of this Article.

ARTICLE XII.

No vessel of war of any of the Contracting Powers, hereafter laid down, other than a capital ship, shall carry a gun with a calibre in excess of 8 inches (203 millimetres).

ARTICLE XIV.

No preparations shall be made in merchant ships in time of peace for the installation of warlike armaments for the purpose of converting such ships into vessels of war, other than the necessary stiffening of decks for the mounting of guns not exceeding 6-inch (152 millimetres) calibre.

ARTICLE XV.

No vessel of war constructed within the jurisdiction of any of the Contracting Powers for a non-Contracting Power shall exceed the limitations as to displacement and armament prescribed by the present Treaty for vessels of a similar type which may be constructed by or for any of the Contracting Powers; provided, however, that the displacement for aircraft carriers constructed for a non-Contracting Power shall in no case exceed 27,000 tons (27,432 metric tons) standard displacement.

ARTICLE XVI.

If the construction of any vessel of war for a non-Contracting Power is undertaken within the jurisdiction of any of the Contracting Powers, such Power shall promptly inform the other Contracting Powers of the date of the signing of the contract and the date on which the keel of the ship is laid; and shall also communicate to them the particulars relating to the ship prescribed in Chapter II., Part 3, Section 1 (b), (4) and (5).

ARTICLE XVIII.

Each of the Contracting Powers undertakes not to dispose by gift, sale or any mode of transfer of any vessel of war in such a manner that such vessel may become a vessel of war in the navy of any foreign Power.

CHAPTER II.—PART 3.—SECTION 1.

(b) Each of the Contracting Powers shall communicate promptly to each of the other Contracting Powers the following information :—

* * * *

- (4) The standard displacement in tons and metric tons of each new ship to be laid down, and the principal dimensions, namely, length at waterline, extreme beam at or below waterline, mean draught at standard displacement.
- (5) The date of completion of each new ship and its standard displacement in tons and metric tons, and the principal dimensions, namely, length at waterline, extreme beam at or below waterline, mean draught at standard displacement, at time of completion.

PART 4.—DEFINITIONS.

For the purposes of the present Treaty, the following expressions are to be understood in the sense defined in this Part.

Capital Ship.

A capital ship, in the case of ships hereafter built, is defined as a vessel of war, not an aircraft carrier, whose displacement exceeds 10,000 tons (10,160 metric tons) standard displacement, or which carries a gun with a calibre exceeding 8 inches (203 millimetres).

Aircraft Carrier.

An aircraft carrier is defined as a vessel of war with a displacement in excess of 10,000 tons (10,160 metric tons) standard displacement designed for the specific and exclusive purpose of carrying aircraft. It must be so constructed that aircraft can be launched therefrom and landed thereon, and not designed and constructed for carrying a more powerful armament than that allowed to it under Article IX. or Article X. as the case may be.

Standard Displacement.

The standard displacement of a ship is the displacement of the ship complete, fully manned, engined, and equipped ready for sea, including all armament and ammunition, equipment, outfit, provisions and fresh water for crew, miscellaneous stores and implements of every description that are intended to be carried in war, but without fuel or reserve feed water on board.

The word "ton" in the present Treaty, except in the expression "metric tons," shall be understood to mean the ton of 2,240 pounds (1,016 kilo.).

Vessels now completed shall retain their present ratings of displacement tonnage in accordance with their national system of measurement. However, a Power expressing displacement in metric tons shall be considered for the application of the present Treaty as owning only the equivalent displacement in tons of 2,240 pounds.

A vessel completed hereafter shall be rated at its displacement tonnage when in the standard condition defined herein.

SECOND SCHEDULE.

Section 4.

ARTICLES OF TREATY TO PROTECT NEUTRALS AND NON-COMBATANTS AT SEA IN TIME OF WAR, AND TO PREVENT USE IN WAR OF NOXIOUS GASES AND CHEMICALS.

ARTICLE I.

The Signatory Powers declare that among the rules adopted by civilised nations for the protection of the lives of neutrals and non-combatants at sea in time of war, the following are to be deemed an established part of international law :—

1. A merchant vessel must be ordered to submit to visit and search to determine its character before it can be seized.

A merchant vessel must not be attacked unless it refuse to submit to visit and search after warning, or to proceed as directed after seizure.

A merchant vessel must not be destroyed unless the crew and passengers have been first placed in safety.

2. Belligerent submarines are not under any circumstances exempt from the universal rules above stated ; and if a submarine cannot capture a merchant vessel in conformity with these rules the existing law of nations requires it to desist from attack and from seizure and to permit the merchant vessel to proceed unmolested.

ARTICLE III.

The Signatory Powers, desiring to ensure the enforcement of the humane rules of existing law declared by them with respect to attacks upon and the seizure and destruction of merchant ships, further declare that any person in the service of any Power who shall violate any of those rules, whether or not such person is under orders of a governmental superior, shall be deemed to have violated the laws of war and shall be liable to trial and punishment as if for an act of piracy and may be brought to trial before the civil or military authorities of any Power within the jurisdiction of which he may be found.
